IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-V

Item No.-510
CP (CAA) No. 29/230/232/PB/2022

IN THE MATTER OF:
Chandra Laxmi Hospital Pvt. Ltd. And Chandra Laxmi Health Secure Pvt. Ltd.
....Applicant

SECTION
U/s 230-232

Order delivered on 27.09.2022

CORAM:
SHRI P.S.N. PRASAD,
HON'BLE MEMBER (JUDICIAL)

SHRI RAHUL BHATNAGAR,
HON'BLE MEMBER (TECHNICAL)

PRESENT:
For the Applicant : Kartikeya Goel, Adv
For the Respondent : Adv. shankari Mishra for RD

ORDER

This is a Second Motion Joint Petition under Section 230-232 of Companies Act, 2013.

Heard the arguments advanced by Counsel for petitioner as well as Proxy Counsel for RD. None appeared on behalf of Income Tax Dept. at the time of virtual hearing of the matter. Counsel for petitioner submitted that an undertaking has already been filed clearly stating that tax liabilities, if any claimed by the Tax Authorities will be paid as per law. The Counsel for petitioner submitted that resulting company has not even completed one year of its existence and has not yet commenced its business operations. Therefore, no tax return is filed as yet before the Income Tax Authorities. However Income Tax Authorities have filed their report with regard to demerger of the company. Order in this **matter is reserved.**

-Sd/-

(RAHUL BHATNAGAR)
MEMBER (T)

-Sd/-

(P.S.N. PRASAD)
MEMBER (J)

Khushboo